

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Badruzzaman.

And

Mr. Justice Sashanka Shekhar Sarkar

CIVIL REVISION NO. 121 OF 2024.

**Unidev Trading (BD) Limited, represented by its
Managing Director.**

...Petitioner.

-Versus-

Abdus Samad alias Abdus Salam and others .

....Opposite parties.

Mr. Md. Ramzan Ali Sikder, Advocate

... For the petitioner.

Mr. Md. Sharifuddin (Ratan), Advocate

... For opposite party No. 28.

Heard on: 08.07.2024.

Judgment on: 14.07.2024,

Md. Badruzzaman,J

This Rule was issued calling upon defendant-opposite party No. 28 to show cause as to why order dated 26.06.2023 passed by learned Joint District Judge, 2nd Court, Narayangonj in Title Suit No. 579 of 2022 keeping the plaintiff's application for *interim* injunction filed under section 151 of the Code of Civil Procedure with the records and not considering the prayer for *ad interim* injunction without assigning any reason whatsoever should not be set aside and as to why defendant-opposite party No.28 and any person claiming under him should not be restrained by an *ad interim* order of injunction from evicting the plaintiff or its tenants from the suit land.

A Division Bench of this Court while issuing the Rule on 22.01.2024 directed the parties to maintain *status quo* in respect of

possession of the suit land for period of 04(four) weeks which was, subsequently, extended time to time

Facts relevant, for the purpose of disposal of this Rule, are that the petitioner, a limited company, as plaintiff instituted Title Suit No. 579 of 2022 against the opposite parties in 2nd Court of Joint District Judge, Narayangonj praying for a decree of declaration of title, confirmation of possession and permanent injunction in respect of 1.6652 acre suit land.

At the time of filing the suit on 20.09.2022, the plaintiff filed an application under Order 39 rule 1 read with section 151 of the Code of Civil Procedure for temporary injunction restraining the defendants from dispossessing the plaintiff company and its tenants from the suit land and the trial Court upon hearing directed the defendants to show cause within 30 days from the date receipt of the notice as to why the injunction as sought for should not be granted. Defendant No. 1 appeared in the suit on 20.10.2022. On 26.06.2023 the plaintiff filed an application under section 151 of the Code of Civil Procedure praying for an order of *ad interim* injunction restraining defendant opposite party No. 28 from entering into the suit property and interfering with the peaceful possession of the plaintiff and its tenants of the suit property till disposal of the application for temporary injunction. The trial Court instead of passing any order on the application kept the same on record fixing the next date for filing written objection by the defendant vide order dated 26.6.2023.

Challenging the legality of said order dated 26.06.2023 the plaintiff has come up with this application under section 115(1) of the Code of Civil Procedure and obtained the instant Rule and order of *status quo*.

Defendant opposite party No. 28 has entered appearance and filed counter-affidavit and supplementary counter-affidavit to contest the Rule.

Mr. Md. Ramzan Ali Sikder, learned Advocate appearing for the plaintiff-petitioner submits that temporary injunction matter was pending for disposal and being threatened by defendant No. 28, the plaintiff filed the application for *ad interim* injunction against him and the matter was to be disposed of on urgent basis but the trial Court without considering such aspect, illegally kept the application on records and thus, committed an error of law resulting in an error in the decision occasioning failure of justice. Learned Advocate further submits that at the time of issuance of Rule on 22.01.2024, this Court directed the parties to maintain *status quo* in respect of possession of the suit land but opposite party No. 28 neither challenged said order before the Appellate Division nor filed application for vacating the order and since the substantive applications for injunction have not been disposed of as yet, the trial Court should be directed to dispose of the applications for injunction on merit by maintaining *status quo* till disposal of the injunction matter.

On the other hand Mr. Md. Sharifuddin (Ratan), learned Advocate appearing for opposite party No. 28 submits that the plaintiff has no *prima facie* or arguable case to get any order of injunction or *status quo* and accordingly, the trial Court rightly kept the application on records and as such, interference is not called for by this Court.

We have heard the learned Advocates, perused the application, the plaint of the title suit, the applications for temporary and *ad interim* injunction, counter-affidavits and other materials available on record. On perusing the materials on record, it appears that during pendency of

the suit the plaintiff filed application for temporary injunction and the trial Court directed the defendants to show cause within 30 days by order dated 20.09.2022. Admittedly, the application for temporary injunction has not been disposed of as yet. It also appears that the plaintiff on 26.6.2023 filed an application under section 151 of the Code of Civil Procedure against defendant No. 28 praying for restraining him from interfering with the peaceful possession of the plaintiff in the suit land and the trial Court, upon hearing, without disposing of the application kept it on records fixing the next fixed date on 14.11.2023 for filing written objection. It appears that the trial Court did not dispose of the injunction matter on merit and the defendants did not file any written statement or written objection in the suit till 26.06.2023. Defendant-opposite party No. 28 did not also challenge the order of *status quo* passed by this Court before the Appellate Division and did not file any application for vacating the order of *status quo* passed by this Court on 22.1.2024.

In the fitness of things, we are of the view that justice would be met if the substantive applications for injunction are disposed of on merit by the trial Court within a specified time by maintaining *status quo* passed by this Court earlier.

In that view of the matter this Rule is disposed of.

The learned Joint District Judge, 2nd Court, Narayanganj is directed to dispose of the applications for *ad interim* and temporary injunction filed by the plaintiff within 30 (thirty) days from the date of receipt of the copy of this order.

The parties are directed to maintain *status quo* in respect of possession of the suit land till disposal of the applications for injunction.

Communicate a copy of this judgment to the Court below at once.

(Justice Md. Badruzzaman)

I agree.

(Mr. Justice Sashanka Shekhar Sarkar)

Md. Nurul Islam